

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD.,
AND CJ DELUZ NIGERIA LTD., *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA,
AND RAYA BAKHIREV, *Respondents*.

DOCKET NO. 20-12

Served: May 6, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON MOTIONS TO COMPEL

I. Overview

A. Background

Complainants Nnabugwu Chinedu Andrew, Avers Logistics Ltd., and CJ Deluz Nigeria Ltd. filed a complaint alleging violations of the Shipping Act sections 41102(c), 41104(3), 41104(10), 40901(a), 41102(6), and 41102(b) in regard to seventeen vehicles. Complaint at 32-34. Respondents Marine Transport Logistics, Inc. ("MTL"), Alla Solovyeva, and Raya Bakhirev deny the allegations and raise affirmative defenses. Answer at 15.

In the scheduling order issued on September 30, 2020, discovery for this proceeding was scheduled to be completed by January 25, 2021, based on the parties' stipulation in their September 29, 2020, joint status report that discovery would end on January 24, 2021. On January 6, 2021, Complainants moved for a revised scheduling order, including a request to extend the completion date for discovery to April 25, 2021. The request was granted in part, extending the completion date for discovery until February 22, 2021.

On February 22, 2021, Complainants filed a motion to compel Respondent MTL to respond to Complainants' first request for production of documents ("Motion to Compel"). Complainants assert that they sent a letter to Respondents on February 20, 2021, outlining deficiencies in Respondents' responses to Complainants' First Request for Production of Documents. Complainants state that despite their good faith attempt to cure the alleged deficiencies and to meet and confer, Respondents have failed to cure the purported deficiencies, necessitating Complainants' motion to compel. Motion to Compel at 3. In addition, Complainants move for an order revising the established schedule. Motion to Compel at 4.

On March 1, 2021, Respondents filed a response to Complainants' motion to compel and a cross-motion to compel Complainants to respond to Respondents' request for documents ("Response/Cross-Motion"). Respondents maintain that they have responded to Complainants' requests and produced the documents in their possession. Respondents assert that "[b]esides objections and referrals to the parts in their complaint, the Complainants have not produced a single document in response to [Respondents'] Interrogatories and Requests." Response/Cross-Motion at 6 (citing to pages 66-77 of Respondents' Appendix).

On March 8, 2021, Complainants filed a reply to the response and opposition to the cross-motion to compel ("Reply").

B. Standard of Review

The Commission's Rules permit discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1).

On motion or on its own, the presiding officer may limit the frequency or extent of discovery otherwise allowed by these rules if the presiding officer determines that:

(A) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive;

(B) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or

(C) The burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.

46 C.F.R. § 502.141(e)(2)(ii). The Commission's Rules also permit the presiding officer to "issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense." 46 C.F.R. § 502.141(j). Further, the Commission's Rules governing the production of documents or electronically stored information provides that parties "must produce the documents as they are kept in the usual course of business or must organize and label them to correspond to the categories in the request" and "need not produce the same electronically stored information in more than one form." 46 C.F.R. § 502.146(b)(2)(v)(A, C).

II. Motions to Compel

The parties' motions to compel primarily raise three issues: 1) Complainants object to the sufficiency and identification of the documents produced; 2) for documents not produced, Respondents request additional time to obtain some storage invoices and object to certain requests on the basis that Complainants already have those documents or that the requests are not relevant to the issues being adjudicated; and 3) Respondents seek to compel Complainants to produce documents requested by Respondents.

A. Documents Produced

1. Sufficiency of the Documents Produced

Complainants seek to compel MTL to produce additional documents, arguing that Respondents did not provide the entire group of documents requested in each demand, for instance, merely providing invoices and payment receipts in response to its demand to produce “documents, emails, writings, notes, receipts, correspondence and the like.” Motion to Compel, Appendix C (Letter to MTL Outlining Deficiencies), at Page 1. Respondents state that they have produced documents consistent with Complainants’ instructions and explain how each production corresponds to each demand. With the exception of Demand No. 2(e), for which Respondents seek additional time to obtain documents responsive to the request, Respondents state that they have produced evidence in their possession responsive to Complainants’ requests for documents. Respondents identify the documents responsive to the requests at issue as follows:

Demand No. 1 – Exhibit 1, 2, 4, 8, MTL’s Response to Interrogatory #4 and # 11(d), Bakhirev’s Answers to Requests for Admission # 4, Initial Disclosures to Complainants.

Demand No. 2(g) – Exhibit 4, Pages 10 and 60-61.

Demand No. 4 – MTL’s Response to Interrogatory # 4 and # 22, Exhibit 7.

Demand No. 5 – Exhibit 10.

Demand No. 6(a - d) – MTL’s Response to Interrogatory # 4.

Demand No. 6(g) – Exhibit 5.

Demand No. 6(i - k) – MTL’s Response to Interrogatory # 4.

Demand No. 7(a - b) – MTL’s Response to Interrogatory # 4 and # 5(b).

Demand No. 8(a) – Exhibit 10.

Demand No. 8(c) – MTL’s Response to Interrogatory # 11(d).

Demand No. 8(d) – MTL’s Response to Interrogatory # 4 and # 5(b).

Demand No. 8(e) – MTL’s Response to Interrogatory# 5(b).

Demand No. 8(g) – MTL’s Response to Interrogatory # 10.

Demand No. 8(h) – MTL’s Response to Interrogatory # 11(d).

Demand No. 8(j) – Exhibit 8.

Demand No. 8(i) – Exhibit 6.

MTL thus demonstrates that it either produced documents responsive to Complainants’ requests or pointed to the location of documents already in Complainants’ possession. Some of the documents appear to have been produced in connection with Respondents’ responses to Complainants’ interrogatories and requests for admission, or through initial disclosures. Complainants’ Reply does not contradict the above representations by Respondents.

Parties “need not produce the same electronically stored information in more than one form.” 46 C.F.R. § 502.146(b)(2)(v)(C). Therefore, it is not necessary for MTL to produce any document previously produced to Complainants. Further, the information provided by MTL appears to be sufficient to allow Complainants to identify and locate the responsive documents in their possession. Where there are no responsive documents, there is no basis to require MTL to certify that no such documents exist, as requested by Complainants. Accordingly, Complainants have not demonstrated a basis to compel MTL in this regard.

2. Identification of the Documents Produced

Complainants maintain that Respondents provided hundreds of pages of documents without any specific bates numbers or references in response to their demands. Complainants seek to compel MTL to provide “specific bates numbers or references with respect to all documents served to date identifying ‘with specificity and particularity’ which documents are responsive to which demands.” Motion to Compel, Appendix C, at Page 1. In their response and cross-motion, Respondents identify the produced information responsive to each demand.

The responding party must organize documents in such a manner that the requesting party can reasonably locate which documents are responsive to its specific requests. *Henderson v. Holiday CVS, Ltd. Liab. Co.*, 2010 U.S. Dist. LEXIS 156638, at *12 (S.D. Fla. 2010); *SEC v. Kovzan*, 2012 U.S. Dist. LEXIS 106162, at *29 (D. Kan. 2012). “Parties may be required to specify documents with a larger set of reports, rather than simply referring to the entire report itself.” *Haughton v. District of Columbia*, 315 F.R.D 424, 428 (D.D.C 2014) (citing *Kline v. Berry*, 287 F.R.D. 75, 80 (D.D.C. 2012)).

As discussed above, Respondents identified the location of the documents responsive to each demand by pointing to specific exhibit numbers and responses provided to Complainants’ interrogatories containing similar requests for information. Complainants do not provide any authority for their contention that Respondents must respond by identifying records by specific bates numbers. It is thus found that the manner in which Respondents identified responses to Complainants’ requests is sufficient. Accordingly, the motion to compel is denied in this regard.

B. Documents not Produced

1. Storage Invoices

In Demand No. 2(e), Complainants seek to compel MTL to provide “[a]ll storage invoices received by MTL from the Georgia, Texas and California based storage facilities used by MTL as identified in the Complaint and which MTL received from the facilities for storage of” all seventeen vehicles listed in Exhibit A of the complaint. Respondents state that additional time is needed to search for the invoices from the Houston warehouse and that MTL will request the invoices from the Los Angeles warehouse. Response/Cross-Motion at 3.

Respondents must produce any responsive storage invoices in their possession as requested in Demand No. 2(e) by the deadline indicated below.

2. Respondents’ Objections to Requests for Production

Respondents object to some of Complainants’ requests on the basis that only documents related to the 17 vehicles identified in the complaint should be provided. Respondents also state that Complainants already have some of the documents requested. In addition, Respondents state that some of the information sought, including Automated Export System (“AES”) records, are not relevant to the matters raised for adjudication.

Complainants posit that even if they are already in possession of responsive documents, Respondents are nevertheless required to either produce such documents or at least sufficiently identify the documents to which they refer so that Complainants can determine what documents are being referenced and whether the documents are in their possession. Motion to Compel, Appendix C, at Pages 2–3. Complainants also contend that relevance is broadly construed by courts. Motion to Compel, Appendix C, at Page 3. Further, Complainants assert that Respondents’ objection to the requests for AES records has already been ruled on, citing a different proceeding. Motion to Compel, Appendix C, at Page 3.

As an initial matter, it is noted with regard to the Order in *MAVL Capital Inc. v. Marine Transport Logistics, Inc.* (FMC Docket No. 16-16) cited by Complainants that discovery rulings issued in other proceedings are not binding on this proceeding. Docket No. 16-16 is a different proceeding involving different parties and facts. Accordingly, determinations made as to the relevancy of requests in Docket No. 16-16 do not necessarily apply to this proceeding.

The Commission’s Rules permit the discovery of nonprivileged matters relevant to a claim or defense and authorize “the presiding officer to order discovery of any matter relevant to the subject matter involved in the action.” 46 C.F.R. § 502.141(e)(1). However, “[i]t is fundamental that the scope of discovery is not limitless and is restricted by the concepts of relevancy.” *American President Lines, Ltd. v. Cyprus Mines Corp. and Cyprus Minerals Co.*, 26 S.R.R. 1227, 1234 (FMC 1994).

Notwithstanding its objections, Respondents nevertheless identified documents that they indicate are responsive to the requests objected to. Where Respondents did not produce the requested documents, they identified where Complainants may locate the documents or raised a credible reason as to why the documents could not be produced. In addition, to the extent that Complainants are requesting documents for vehicles that are not identified in the complaint, they do not explain how those vehicles might be relevant to the allegations and issues raised for adjudication despite an opportunity to do so. Accordingly, Complainants have not demonstrated that Respondents should be compelled to produce documents other than those related to the 17 vehicles listed in the complaint.

In light of the fact that Respondents acknowledge needing additional time to provide certain documents, Complainants’ motion to compel is granted in part and denied in part.

C. Respondents’ Cross-Motion to Compel

Respondents move for an order compelling Complainants to respond to Respondents’ interrogatories and requests for production of documents. Respondents state that “[b]esides objections and referrals to the parts in their complaint, the Complainants have not produced a single document in response to the enclosed Interrogatories and Requests.” Response/Cross-Motion at 6 (citing to pages 66 - 77 of Respondents’ Appendix). Respondents posit that Complainants’ “failure to produce even a single document to the 18 requests cannot be deemed acting in good faith.” Response/Cross-Motion at 6.

Complainants assert in response:

To the extent that respondents purport to ‘cross-move’ to compel the production of documents by complainants in two (2) conclusory sentences on page ‘6’ of their brief, the Presiding Officer may summarily disregard that purported ‘cross-motion’ due to respondents’ abject failure to comply with the requirements of §502.120 subparagraphs 2(i) – (v) in that respondents have failed to provide the documents required by Rule 150 for a motion to compel (*inter alia*, a certification that the moving party has conferred in good faith or attempted to confer with the party failing to respond to discovery requests). Additionally, respondents admit that complainants actually provided written responses to their demands, but are simply unhappy with the substance of the response.

Reply at 3.

While, according to Complainants, they received “hundreds of pages of documents” from Respondents in response to their request for production, Complainants for their part, have produced no documents to Respondents in response to Respondents’ requests. Complainants’ failure to produce any documents raises concerns. At this point, all discovery responses should have been provided. However, the cross-motion is not made with the particularity needed to rule on specific issues. Accordingly, Respondents’ motion to compel Complainants to produce the documents they requested is granted in part and denied in part. Complainants are ordered to provide any relevant responses to Complainants’ request for documents by the deadline below.

III. ORDER

For the reasons stated above, it is hereby **ORDERED** that Complainants’ Motion to Compel MTL to respond to Complainants’ First Request for Production of Documents be **GRANTED IN PART AND DENIED IN PART**. MTL shall produce any remaining responsive storage invoices in their possession by the deadline below.

It is further **ORDERED**, that Respondents’ Cross-Motion to Compel Complainants to respond to Respondents’ Interrogatories and Requests for Documents be **GRANTED IN PART AND DENIED IN PART**. Complainants shall provide any responsive documents by the deadline below.

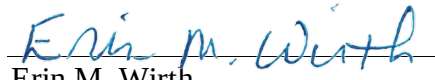
It is further **ORDERED** that the parties comply with the following schedule.

May 25, 2021	MTL and Complainants shall produce the discovery required above.
June 1, 2021	Parties file joint status report.
June 22, 2021	Complainants file brief with proposed findings of fact and appendix.
July 21, 2021	Respondents file opposition brief with proposed findings of fact and responses to Complainants’ proposed findings of fact, and appendix.

August 4, 2021

Complainants file reply brief with responses to Respondents' proposed findings of fact.

All other requirements of the scheduling order, including the requirements for filing of briefs and appendices, shall be followed.



Erin M. Wirth

Chief Administrative Law Judge